



File No: EXP202213782

## RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) requested EMPARK APARCAMIENTOS Y SERVICIOS, S.A. (hereinafter, the respondent) access to his personal data and "(...) as the owner of the vehicle brand Kia model Optima, white color with license plate \*\*\*LICENSE\_PLATE.1, I request through this document that I be provided access to all images or videos recorded by means of surveillance cameras in the facilities of Parking \*\*\*PARKING.1 located in the city of \*\*\*CITY.1. The purpose (...) is to be able to verify the condition of my vehicle upon entering and exiting the parking lot to determine if, while parked in your facilities, it suffered any front-left damage (in the direction of travel) and thus be able to identify the responsible party through the pertinent complaint," receiving a response on November 15, 2022, via email stating, "We must inform you that, unless required by a judicial or administrative authority, we cannot provide you with the recordings you requested since they include information about many other users protected by data protection regulations. In any case, we inform you that we have reviewed them and do not see where your vehicle is parked nor any possible damage that may have been caused by another user's vehicle." A copy of his request and the response received is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The legal representative of the respondent states that they manage a parking facility in the city of \*\*\*CITY.1, which has two cameras, one for exit and another for entry, that record at a very low level of clarity.

It is stated that, once the request from the claimant was received, both the insurance department and the parking managers were notified. A response was given on November 15, 2022, indicating that the requested images contain personal data of third parties, so they cannot be provided unless required by a judicial authority or a corresponding authority. It is noted that...

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that the images have been preserved as a precaution. However, they consider that the claimant is requesting access to the images of their vehicle to verify its condition during parking, this image not being a personal data, meaning that the respondent should in any case provide the images due to the duty of custody established under Law 40/2002, of November 14, regulating the vehicle parking contract, but not under data protection regulations.

It is emphasized that the available recordings do not contain any personal data of the claimant, as the vehicle's license plate is not even visible. Furthermore, it is noted that the claimant's request was generic as it asked for "access to all images or videos recorded by the surveillance cameras in the facilities," without specifying whether they want to see only the entry and exit, the entire time while the vehicle is parked, or the images for the whole day.

"Lastly, and most importantly, the images contain personal data of third parties. Although the video quality is poor, EMPARK cannot be certain that no faces of the individuals appearing can be identifiable at any moment; therefore, as a precaution, and in consideration of the care that the company has for the data protection of the interested parties, it has been decided not to provide the images.

Let us consider that, although the request is indefinite, the duration of the parking of the vehicle in question is approximately two hours, during which there is a significant influx of vehicles and individuals. Thus, EMPARK had to weigh the rights to data protection of these third parties against the legitimate interest justified by the claimant.”

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied, given that the respondent has responded to the information request, albeit incompletely, as the response addressing the right of access to their personal data (data, purposes, recipients, conservation period...) has not been substantiated.

Furthermore, it has not been substantiated that access to the recorded images in which their vehicle appears has been provided.

Consequently, on February 16, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing procedure, so that within a period of fifteen working days they could present the allegations they deemed appropriate, stating that “The issue is that we believe it is not relevant in our specific case, and we say it is not relevant because in the images available the vehicle's license plate cannot be read.

In this way, in the images that are requested from us and that EMPARK has stored, there is no personal data of the claimant because neither the license plate, nor the face, nor any other personal data is visible. It is simply that, an image.”

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blurred image of your vehicle. We have been able to identify, and having doubts about it, the vehicle from the recordings based on the indications made by the user in their request, describing the entry-exit times, the type of car, color, etc., but not because the license plate is readable; simply from the visual of the images, neither the owner of the vehicle nor the driver can be identified. That is to say, if the claimant does not provide us with that information, from the viewing of the images alone, it is not possible to identify the vehicle, nor can the license plate be identified, and therefore no physical person who is the owner or driver of the vehicle can be identified.”

Regarding the response about the right of access being incomplete for not having provided purposes, recipients, etc., “(...) to clarify an aspect that was not indicated in the response to the information request of January 24, 2023. In the parking booth, not only is the sign visible that this party provided as document number 7, but there is also an expanded information sheet with all the information that the AEPD precisely indicates in its writing (data controller, purpose of processing, retention period, recipients, legitimacy, rights), following the recommendations established by the AEPD in its informational guides available on the website.”

“(...) we cannot deny that it is true that in the response given to the claimant, not all the information established in art. 15 of the GDPR was included (...) The claimant requests a very specific aspect, some images. Although they use the AEPD form, they do not make a generic access request regarding all the data that EMPARK may have stored, but rather it is a very specific claim: (...)”

In conclusion:

“- Given the lack of clarity of the cameras, we do not have personal data stored from the claimant, because nothing is visible, not even the license plate.

- Since we did not consider that we had personal data, the response was given from a customer service perspective, not as a response to an exercise of rights under art. 15 and following of the GDPR as such.

- The claimant requests a very specific aspect, the image of the vehicle, and does not make a generic access request for their data.

- The images do not allow for the alleged damages caused to the vehicle to be substantiated; it cannot

be seen if any car hits it, nor can it be clarified if the damages were present upon entry or exit from the parking lot. Therefore, they were not helpful to the claimant.”

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within a period of fifteen working days, they may formulate any allegations they deem appropriate, not formulating allegations within the established period.

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## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this role the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of that transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on February 16, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

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“1. When the procedure exclusively concerns the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission

agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint accepted.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

### III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding the compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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### IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the data subject to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the data subject chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes

of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

V

#### Conclusion

Vehicle registration numbers are personal data and, therefore, subject to protection under data protection regulations. If the controller believes that access to such recordings may affect the images of third parties, necessary measures must be taken to anonymize their data, which may even include sending extracts of images or providing access through a certified letter in which the data subject to processing is specified as precisely as possible.

During the processing of this procedure, the entity being complained about has responded to this Agency, but it does not prove that it has addressed the request made by the complainant, sending the required response to their request.

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Thus, it cannot be accepted that the response that corresponds to be given can be manifested on the occasion of a mere administrative procedure, such as the submission of allegations regarding this procedure, initiated precisely for not properly addressing the request in question.

The aforementioned regulations do not allow the request to be overlooked as if it had not been raised, leaving it without the response that the controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where it does not meet the established requirements, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the complainant informing them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that originated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the complaint made by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge EMPARK APARCAMIENTOS Y SERVICIOS, S.A with NIF A78320736, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be addressed, in accordance with the provisions of this resolution.

The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to EMPARK APARCAMIENTOS Y SERVICIOS, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the Audiencia Nacional, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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